

THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

PRESENT:

Mr. Justice Muhammad Hashim Khan Kakar
Mr. Justice Salahuddin Panhwar
Mr. Justice Ishtiaq Ibrahim

J.P. No. 62/2022

*(against the Judgment dated 01.02.2022
passed by the Hon'ble Lahore High Court,
Rawalpindi Bench in CrL.A. No. 352/2021)*

Khursheed Ahmad

...Petitioner(s)

VERSUS

The State etc.

...Respondent(s)

For the Petitioner(s) : Mr. Rehan Iftikhar, ASC

For the State : Mr. Tariq Siddique, APG

Assisted by : Ms. Tayyaba Munir, Law Clerk

Date of hearing : 26.11.2025

JUDGMENT

ISHTIAQ IBRAHIM, J.- Petitioner Khursheed Ahmad s/o Abdul Rasheed vide F.I.R. No. 296/2019 registered at Police Station Fatehjang, Attock was convicted by the Additional Sessions Judge, Fatehjang (“**Trial Court**”) u/s 302 (b) Pakistan Penal Code, 1860 (“**PPC**”) vide judgment dated 12.02.2021 and was sentenced to life imprisonment for committing the murder of his wife Mst. Gulshan Bibi (“**the deceased**”). He was also directed to pay compensation of Rs. 2,00,000 u/s 544-A CrP.C to the legal heirs of the deceased. In case of default in payment of compensation, the convict was ordered to undergo an additional six months’ simple imprisonment. Benefit of Section 382-B Cr.P.C was also extended in favour of the petitioner.

2. Being aggrieved by the judgment of the learned trial court, the petitioner assailed his conviction before the learned Lahore High Court, Rawalpindi Bench, Rawalpindi (“**High Court**”) where the criminal appeal no. 352/2021 of the petitioner was dismissed. However, the conviction and sentence awarded to the petitioner u/s 302 (b) PPC was set aside and he was convicted u/s 316 PPC for committing *Qatl Shibh-i-amd* and sentenced to ten years imprisonment along with Diyat amounting to Rs. 2,055,936 which is to be paid to the legal heirs of the deceased vide judgement dated 01.02.2022 (“**impugned judgment**”).

3. Through the instant Jail Petition, the petitioner-convict seek leave to appeal against the impugned judgment of the High Court.

4. The prosecution story, as recorded by Lehrasib Ali, S.I. (**PW-10**) on the basis of the statement of the complainant, Farhad Gul (**PW-7**), vide Exh.PA/1 is that his sister, Gulshan Bibi, had been married to the petitioner for approximately 8–9 years, and from this wedlock a son, Muhammad Ali Khan (PW-09), aged 7–8 years, was born. According to PW-7, the petitioner was unemployed, addicted to narcotics, and frequently quarreled with his wife. In 2018, after being subjected to physical abuse, Gulshan Bibi left the petitioner's house and began residing with her parents. Upon intervention of family elders, the parties reconciled and resumed cohabitation on the eve of Eid. PW-7 further stated that on 21.07.2019 he received a telephone call from a woman residing in vicinity of her sister's house, informing him that the petitioner had murdered Gulshan Bibi. The complainant, accompanied by his brothers Rasheed, Naseem Gul, and Muhammad Akhlaq Ahmad, immediately reached the residence of their sister, where they found her lying dead on a cot. Muhammad Ali (PW-9), the minor son of the deceased and appellant, informed them that during the previous night his father, Khursheed Ahmad, had assaulted his mother with a wooden plank, and that one Raees Pathan had also slapped her, as a result of which she became unconscious and subsequently died.

5. Lehrasib Ali, S.I. (PW-10), upon reaching the place of occurrence, recorded the statement of the complainant and dispatched it to the Police Station for the registration of the FIR. He examined the dead body, prepared the inquest report (**Ex.PO**) and the application for post-mortem examination (**Ex.PN**), and thereafter sent the dead body to THQ Hospital, Fatehjang. He then commenced the investigation, during which he prepared the visual site plan and secured a tube-light along with the clothes of the deceased vide recovery memo Ex.PL. Subsequently, he proceeded to the hospital and received two envelopes and two sealed parcels from Fouzia Bibi 2160/LC. PW-10 arrested the petitioner on 31.07.2019. On 04.08.2019, pursuant to the petitioner's disclosure and pointation, he recovered the crime weapon that is a wooden plank vide memo Ex.PM from his house, and remitted the accused to judicial lock-up the following day. The alleged crime weapon was subsequently deposited at PFSA on 09.08.2019. On 13.08.2019, the case file was submitted to the SHO for the preparation of the report under Section 173, Cr.P.C.

6. In order to substantiate the charge, the prosecution produced nine witnesses. Upon completion of the prosecution evidence, the learned trial court examined the petitioner under Section 342, Cr.P.C., wherein he denied all inculpatory circumstances appearing against him and pleaded innocence. Upon conclusion of the trial, the petitioner was convicted and sentenced as detailed earlier, which was assailed before learned High Court where the conviction u/s 302 (b) PPC was set aside and the petitioner was convicted u/s 316 for committing *Qatl Shibh-i-amd* and sentenced as discussed in para 2, hence this instant petition.

7. After hearing the learned counsel for the petitioner and the learned Additional Prosecutor General, Punjab, representing the State who argued the case vehemently, we have, with their valuable assistance, meticulously scrutinized the entire record, the evidence available, and the impugned judgment.

8. From the learned trial court, the petitioner was convicted under Section 302(b) PPC for *qatl-i-amd*. However, upon appeal, the learned High Court set aside the conviction under Section 302 (b) and instead convicted the petitioner under Section 316 PPC for *qatl-i-shibh-i-amd*. *Qatl-i-amd*, as the term itself contemplates the commission of homicide with the intention to cause death as *Qatl* (قتل) means *murder* and *Amd* (عمد) means *intention*. Now, for a clearer appreciation of *qatl-i-shibh-i-amd*, it is appropriate to reproduce Section 315 PPC, which defines and elaborates the essential ingredients of *qatl-i-shibh-i-amd*.

"Whoever, with **intent to cause harm to the body or mind** of any person, causes the **death of that or of any other person** by means of a **weapon or an act which in the ordinary course of nature is not likely to cause death** is said to commit *Qatl Shibh-i-amd*."

9. Now coming towards the merits of this case. The deceased was discovered lying dead inside the house of the petitioner. In such circumstances, a primary point for determination is whether the death was natural or homicidal in nature and if it was homicidal, who committed the said murder. The first and foremost question, therefore, is whether the prosecution has established that the deceased met a homicidal death.

First we will discuss the **ocular evidence** in this regard. The prosecution primarily relies upon the testimony of Muhammad Ali Khan (PW-9), who is not only the real son of the deceased but also of the petitioner. At the time of recording his statement on 20.10.2020, PW-9 was approximately eight years of age. The learned Trial Court,

after conducting an appropriate inquiry, found him mentally alert, perceptive, and fully competent to testify, and accordingly permitted his examination as a witness.

PW-9 gave a clear and consistent account, stating that the petitioner, along with one Raees Pathan, subjected his mother to beatings with a wooden piece, as a result of which she succumbed to her injuries. The defence subjected PW-9 to extensive cross-examination in an effort to shake his credibility; however, the witness remained steadfast and unwavering. His narration of events remained coherent and firmly aligned with the prosecution case, and nothing of substance could be elicited to cast doubt on his veracity.

It is also noteworthy that the defence has not disputed the presence of PW-9 at the relevant time and place. The record establishes that PW-9, being the child of both the deceased and the petitioner, had always resided with his parents. There is not a scintilla of evidence suggesting that he was ever under the custody, influence, or tutelage of the complainant or his maternal uncles prior to the occurrence as alleged by petitioner. Consequently, the allegation that PW-9 was manipulated or tutored to depose falsely against his own father stands unsupported and is inherently improbable.

Now we will discuss the **medical evidence**. Dr. Mishal (**PW-5**), who performed the autopsy on the body of the deceased, furnished a detailed account of multiple external injuries found on the corpse as follows:

- i. A bruise 02 X 3 c.m. present at left lateral aspect of neck.
- ii. Bruise on left eye, covering the whole left eye, medial aspect of nose and lower eye lid.
- iii. Laceration and abrasion on lower lip with oozing of blood from mouth.
- iv. Multiple bruises on anterior aspect of bilateral lower limbs and knee joint.
- v. Bruise marks on buttocks- showing postmortem staining.
- vi. Multiple bruise marks on bilateral upper limbs and hands.
- vii. Multiple bruise marks on back
- viii. Injuries on right big toe.

PW-5 also procured specimens for histopathology and forensic toxicology. The reports Ex.PS and Ex.PT confirmed that no poison, intoxicant, or drug was detected in the heart, blood, liver, or stomach contents. PW-5 categorically opined that the deceased had been subjected to severe physical violence during the intervening night of 20/21-07-2019. She further concluded that death resulted from cardiopulmonary arrest and hypovolemic shock induced by the

violence inflicted upon her. Furthermore, the statement of PW7 regarding violence by petitioner on deceased also seems to have strong footing as the injury marks on the body of deceased clearly shows that she was subjected to violence. The medical evidence coupled with the ocular evidence, leaves no room for doubt that the deceased succumbed to violence inflicted upon her rather than to any natural cause.

10. It is significant that the petitioner has produced no material whatsoever to substantiate the death of his wife as natural death. On the contrary, his conduct is wholly inconsistent with such a theory. A husband finding his wife injured, unconscious or dead would, in the ordinary course of human conduct, immediately seek medical assistance or report the matter to the police or informing her family. The petitioner did none, and police was informed upon arrival of the brothers of the deceased. Petitioner's failure to take any remedial or protective steps not only negates the possibility of natural death but also lends considerable corroboration to the prosecution's case.

11. The complainant (PW-7) has also narrated in the FIR that his sister was frequently quarreled with by her husband and was subjected to physical abuse. Due to this persistent maltreatment, she began residing with her parents in 2018. Upon the intervention of the family elders, she was compelled to reconcile with her husband. This clearly shows that the marriage was never peaceful and was marked by continuous violence. It is therefore understandable that the present incident of violence is part of the same chain of abuse, which, this time, culminated in her death. With heavy heart we state that in similar cases, where daughters are subjected to sustained maltreatment by their husbands or in-laws, it is the sad state of our society though with a few exceptions, that families still compel them to return to the same abusive environment. These daughters are undeniably victims of domestic violence and are deserving of protection, compassion, and legal recourse yet societal pressures and entrenched cultural norms often drive families to send their daughters back into circumstances that amount to nothing less than a living hell.

12. Furthermore, the petitioner has taken the plea of alibi and states he was not present at the place of occurrence as he was allegedly at his workplace during the intervening night of 20/21.07.2019, returning home only on the evening of 21.07.2019 and that he was arrested by the Investigating Officer on the evening

of 21.07.2019 and thereafter kept in illegal confinement for ten days. This defence, however, is wholly unsubstantiated and contradicted by the record. Had the petitioner actually been arrested on 21.07.2019 and kept in unlawful custody, neither he nor his family members would have remained silent; yet no complaint, or application was ever lodged before any competent authority. On the contrary, the evidence demonstrates that immediately after the incident the petitioner absconded, remained unavailable to the police, and was ultimately apprehended on 31.07.2019. It is equally significant that the petitioner never challenged the result of the investigation, nor was any suggestion put to the Investigating Officer that he had misreported the petitioner's version.

The plea of alibi introduced by the petitioner at trial is likewise an afterthought and devoid of any evidentiary support. The petitioner failed to disclose the address of the alleged workplace, produced no employer or coworker, and withheld his father and sister who, according to him, resided with him and could have supported his version. This deliberate non-production of the best evidence raises an adverse inference against him under settled principles of law. In these circumstances, both the plea of illegal confinement and the plea of alibi are found to be contrived, devoid of evidentiary support, and do not inspire confidence.

13. In view of the above discussion, the instant petition is dismissed, and leave is refused. The impugned judgment, together with the conviction and sentences imposed upon the petitioner therein, are hereby maintained. The petitioner is directed to pay Diyat to the legal heirs of deceased amounting to Rs. 2,055,936 in accordance with Section 331 PPC, which shall be paid in three equal installments over a period of five years. The petitioner shall be released on bail upon furnishing bail bonds in the sum of Rs. 1,000,000 (ten lac rupees) to the satisfaction of the learned trial court and in case of default he shall be dealt in accordance with law.

Judge

Judge

Judge

Islamabad the
26th November 2025
M.Siraj, SPS / Tayyaba Munir, Law Clerk
Not Approved for Reporting